

Court No. - 21

Case :- WRIT - C No. - 2605 of 2023

Petitioner :- Jainath Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Girja Shanker Mishra

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Learned counsel for the respondent Corporation seeks time to obtain instructions regarding the present status of the recovery proceedings.

List as fresh on 1.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

Jaideep/-

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has prayed for quashing of the demand notice dated 11.10.2022 issued by respondent no. 3 for recovery of electricity dues in a case of theft of electricity.

Sri Nitesh Patel, Advocate, holding brief of Sri Udit Chandra, learned counsel for the respondent Electricity Department, states that the impugned demand notice has been withdrawn and that the petitioner will be given opportunity of hearing and thereafter fresh order will be passed. The same stand has been taken in the short counter affidavit filed today.

Accordingly, the petition is disposed of with liberty to the respondents to proceed afresh in the matter strictly in accordance with the procedure prescribed under the Electricity Supply Code 2005.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

Jaideep/-